

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

ANTOINE MAURICE ELLIS,

Respondent

) Case Number: FCS-17-352370

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME);
REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY, VISITATION (PARENTING TIME), VACATE ORDERS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties to this action are Respondent Antoine Maurice Ellis (Father) and Other Parent Lamisha Hempstead (Mother). They share one minor child: Layla Ellis (DOB: 05/07/17).
- 2) On October 30, 2025, the Court conducted a review hearing. Minor's Counsel's report was considered and both parties agreed on the Court's adoption of the recommendations of minor's counsel. The Court set a further review hearing on December 30, 2025.
- 3) On December 1, 2025, Father filed a Request for Order seeking modification of the custody and visitation orders. The Request for Order was set for hearing on January 5, 2026.
- 4) On December 26, 2025, Minor's Counsel submitted an additional report raising serious concerns regarding Father.
- 5) On December 30, 2025, the Court continued the review hearing to January 5, 2026 to be heard at the same time as Father's December 1, 2025 Request for Order.

- 1 6) On January 6, 2026, Father requested additional time to retain counsel. The Court originally
2 referred the matter to Family Court Services (FCS) Mediation on February 24, 2026 and set a
3 hearing on Father's December 1, 2025 Request for Order on March 10, 2026. However, upon
4 further consideration and given the complexity of the issues, the Court *sua sponte* reset the matter
5 for February 4, 2026 on its long-cause calendar. The Clerk was instructed to contact Minor's
6 Counsel and to mail the Findings and Order After Hearing directly to the parties.
- 7 7) On February 4, 2026, Father and Mother did not appear. The Court made a finding of good cause
8 to confirm the existing orders wherein the parents shared joint legal and joint physical custody.
9 However, given Minor's Counsel's interactions with the parties and the minor child, the Court
10 determined it was in the minor child's best interest to change the 2/2/5 schedule to a week
11 on/week off schedule. The Court granted Minor's Counsel's request to be relieved.
- 12 8) On February 11, 2026, Father filed a Request for Temporary Emergency (Ex Parte) Orders
13 wherein he asked the Court to vacate its child custody and visitation orders. The Court denied
14 Father's request for emergency orders and set the matter for regular hearing on March 26, 2026.
15 Father requests that the Court vacate the child custody and visitation orders entered on February
16 4, 2026.
- 17 9) On March 13, 2026, Mother filed a Request for Order seeking modification of the existing child
18 custody and visitation orders. Mother requests sole legal and sole physical custody with
19 supervised visitation for Father. Mother's Request for Order was set for hearing on April 30,
20 2026, at 1:30 p.m., in Department 414.
- 21 10) On March 26, 2026, the Court advanced the April 30, 2026 hearing to March 26, 2026. The Court
22 then continued the matters to May 7, 2026. The Court further ordered all exchanges of the minor
23 child for the week on/week off schedule to occur every Friday after school, per the agreement of
24 the parties.
- 25 11) On April 2, 2026, Father filed another Request for Order to modify child custody and visitation
26 on the basis of "Concealment and Due Process Violation," which is set for hearing on May 18,
27 2026.
- 28 12) On April 8, 2026, Father filed an Income and Expense Declaration.
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1 13) On April 29, 2026, Father filed “Respondent’s Declaration in Opposition to Current Visitation
2 Schedule,” which has been read and considered by the Court.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child(ren) is the United States.

8 2) The Court advances Respondent’s Request for Order filed on April 2, 2026 (originally set for
9 hearing on May 18, 2026) to May 7, 2026 at 9:00 a.m. in Dept. 403.

10 3) As such, the Court disposes of the following Requests for Orders with the orders made herein:

11 a. Father’s Request for Order filed on February 11, 2026 (ex parte application);

12 b. Mother’s Request for Order filed on March 13, 2026; and

13 c. Father’s Request for Order filed on April 2, 2026.

14 4) Preliminarily, the Court confirms its prior order that both parents have joint legal and joint
15 physical custody.

16 5) As to the parenting plan (i.e., visitation), the Court will modify the existing week off/week on
17 schedule. Commencing May 7, 2026, Mother’s parenting time shall be on the 1st, 3rd and 4th
18 weekends of each month from Friday after school until Sunday at 6:00 p.m. This plan shall be in
19 effect during the child’s school year.

20 6) During the child’s summer break, the parenting plan shall be modified to a week on/week off
21 schedule, with exchanges to occur on Sundays at 6:00 p.m. Mother’s first week shall commence
22 on the first Sunday after school lets out for summer break. The parents shall rotate the schedule
23 on a week on/week off basis thereafter until the child returns to school. Once the child returns to
24 school, Mother’s parenting time will revert to the 1st, 3rd and 4th weekends of each month from
25 Friday after school until Sunday at 6:00 p.m.

26 7) All prior orders, not in conflict with the orders herein, shall remain in full force and effect.

27 8) The Court will prepare the Findings and Order After Hearing.
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